

Court No. - 4

Case :- WRIT - C No. - 7184 of 2018

Petitioner :- Tahir

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ayub Khan

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Bala Krishna Narayana, J.

Hon'ble Irshad Ali, J.

Learned counsel for the petitioner prays for and is allowed a weeks time to file supplementary affidavit disclosing therein whether any notice of proceedings of provisional assessment was given to him before finalizing his bill.

Put up on 07.03.2018 before appropriate Bench.

Order Date :- 28.2.2018

Madhurima

Court No. - 40

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Petitioner :- Tahir

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ayub Khan

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard Sri Ayub Khan, learned counsel for the petitioner and perused the supplementary affidavit filed in support of writ petition. Sri Chandan Agarwal, learned counsel appearing for the third respondent has produced a photostat copy of the provisional assessment order and the complaint made at the Police Station.

A copy of the aforesaid documents has been given to learned counsel for the petitioner.

The challenge raised in the writ petition is to the recovery citation dated 14th November, 2017 whereby the petitioner has been called upon to make deposit of Rs.61,473/- being charges of the electricity dues which the respondents allege to have arisen out of a provisional assessment and as a result of electricity theft.

No copy of the first information report has been produced before us. However, if there is a first information report registered in terms of Section 135 of the Electricity Act, 2003 (*hereinafter referred to as "the Act, 2003"*) it will be open to the petitioner to seek compounding thereof in terms of Section 152 of the Act, 2003.

However, if provisional assessment has been made then final assessment order has to be passed before proceeding to make recovery under the Act, 2003 read with Uttar Pradesh Electricity Supply Code, 2005 (*hereinafter referred to as "the*

Code, 2005"). In the event final assessment order has not been passed or has been passed without following the procedure prescribed, in that event the petitioner is entitled to file objections before respondent no. 3-Executive Engineer, who after considering the same will have to pass appropriate orders.

Apart from above, if there is any other billing dispute, the same can be raised before the same authority in terms of Clause 6.5 of the 2005 Code.

Consequently, at this stage we dispose of this writ petition with a direction that the petitioner shall file objections before the respondent no. 3 within ten days' from today and the respondent no. 3 shall dispose of the said objections in exercise of his powers as referred to herein above, with regard to final assessment, if any, after considering the objections of the petitioner.

The impugned recovery proceedings shall be subject to the outcome of the said order and will be proceeded against any dues which are found to be recoverable from the petitioner. It shall also be open to the petitioner to seek remedy of appeal in case he is aggrieved by the order of the Executive Engineer in terms of Section 127 of the Act, 2003.

In the event, the petitioner is satisfied with the assessment order and he desires any re-schedulement, he can apply before the Executive Engineer for payment in installments, keeping in view the provisions of Section 6.14 of the Code, 2005.

With the aforesaid directions and observations, the writ petition stands **disposed of**.

Order Date :- 24.4.2018/A. Verma